

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 09/16/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 8	26CV483739	Yen Lucero v. Ha Vu Le Dao, et al.	DEMURRER Demurrer is Unopposed and Sustained with 15 days leave to amend
LINE 9			MOTION TO QUASH Please CTRL CLICK (or scroll down to) Line 9
9:01 LINE 1	23CV425184	Apex Trans Inc, v. Transamerican Shipping, Inc.	MOTION TO WITHDRAW AS ATTORNEY Counsel ordered to appear for status update
LINE 2	23CV425156	Katrina Vallejo et al. v. Richard R. Hansen, et al.	COMPROMISE OF MINOR'S CLAIM (<i>re Elias Tadeo</i>) Notice is proper. The Court has received no opposition from Defendant. Good Cause Appearing, the petition is granted. The Court will sign the previously e-filed MC-351 proposed order approving compromise of claim.
LINE 3			COMPROMISE OF MINOR'S CLAIM (<i>re Heavenly Espinoza</i>) Notice is proper. The Court has received no opposition from Defendant. Good Cause Appearing, the petition is granted. The Court will sign the previously e-filed MC-351 proposed order approving compromise of claim.

- oo0oo -

Calendar Line 1-6

Case Name: *Susan & Cadir Lee v. JP Builders et al.*

Case No. 24CV434341

DEFENDANT'S MOTIONS TO COMPEL DISCOVERY RESPONSES in Lines 1-6 as follows:

- Plaintiff Cadir Lee's Responses to Form Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Susan Lee's Responses to Form Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Cadir Lee's Responses to Special Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Susan Lee's Responses to Special Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Cadir Lee's Responses to Requests for Production of Documents, Set Two & Monetary Sanctions
- Plaintiff Susan Lee's Responses to Requests for Production of Documents, Set Two & Monetary Sanctions

BACKGROUND

Defendant served its second set of written discovery on December 12, 2025. Responses were due January 13, 2026. Plaintiffs failed to serve timely responses.

Plaintiffs explain that their failure to respond was due to a calendaring error, wherein Plaintiffs mis-calendared an extension that they had given to Defendants to respond to discovery. The calendaring error occurred in a context where Plaintiffs had provided Defendants with 11 extensions to respond to discovery over a period of 4 months from August to December 2025.

Plaintiffs served initial responses with objections on February 24, 2026. Subsequently, Plaintiffs served amended discovery responses removing the objections on September 1, 2026, fifteen days before the hearing.

LEGAL STANDARD

Code of Civil Procedure sections 2030.290(a) and 2031.300(a) provide that a party who fails to serve timely responses waives all objections to discovery, including those based on privilege and work product protection. If a party to whom the demand for inspection is directed fails to serve a timely response ... (a) The party waives any objection to the demand, including one based on privilege or on the protection for work product.

However, the same statutes provide a mechanism for relief. The statutory provisions permit relief from waiver if (1) the party subsequently serves substantially compliant responses and (2) the failure to timely respond was the result of mistake, inadvertence, or excusable neglect. A party may be relieved from the waiver of objections by failing to serve a timely response to discovery if the party subsequently served a compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. Opp. (1) 4:4-14.

As to monetary sanctions, sections 2030.290(c) and 2031.300(c) provide that the court 'shall impose a monetary sanction' unless the court finds 'substantial justification' or other circumstances make the imposition of sanctions unjust.

ANALYSIS

The motions to compel objection-free responses are moot. Plaintiffs served amended responses removing all objections on September 1, 2026, providing Defendant with the exact